

# STATE OF NEW YORK

10841--A

## IN ASSEMBLY

April 6, 2026

Introduced by M. of A. STECK, K. BROWN, NORBER -- read once and referred to the Committee on Consumer Affairs and Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to protecting minors online from social media and harmful content

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new article  
2 45-C to read as follows:

### ARTICLE 45-C

#### PROTECTING MINORS ONLINE

#### Section 1550. Definitions.

6 1551. Minors as account holders of platforms that provide an  
7 addictive feature.

8 1552. Age verification.

9 1553. Enforcement.

10 1554. E-Safety advisory commission.

11 § 1550. Definitions. For the purposes of this article, the following  
12 terms shall have the following meanings:

13 1. "Addictive feature" means any of the following psychologically  
14 exploitative features intended to maximize engagement that foreseeably  
15 lead to compulsive use:

16 (a) an addictive feed;

17 (b) autoplay; and/or

18 (c) any other feature defined in regulations adopted pursuant to  
19 section fifteen hundred fifty-three of this article as an addictive  
20 feature.

21 2. "Covered platform" means, subject to regulations adopted pursuant  
22 to section fifteen hundred fifty-three of this article, an internet  
23 website, online service, online application, or mobile application,  
24 including, but not limited to, a social media platform, as defined in  
25 section fifteen hundred fifty-one of this article, that offers users or  
26 provides users with an addictive feature as a significant part of the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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1 service provided by that internet website, online service, online appli-  
2 cation, or mobile application. This definition does not cover either of  
3 the following:

4 (a) an internet website, online service, online application, or mobile  
5 application for which interactions between users are limited to commer-  
6 cial transactions or to consumer reviews of products, sellers, services,  
7 events, or places, or any combination thereof; or

8 (b) an internet website, online service, online application, or mobile  
9 application that operates a feed for the primary purpose of cloud stor-  
10 age.

11 3. "Material harmful to minors" means any material that:

12 (a) the average person applying contemporary community standards would  
13 find, taken as a whole, appeals to the prurient interest;

14 (b) depicts or describes, in a patently offensive way, sexual conduct;  
15 and

16 (c) when taken as a whole, lacks serious literary, artistic, poli-  
17 tical, or scientific value for minors.

18 4. "Social media platform" means an online forum, website, or applica-  
19 tion that:

20 (a) allows users to upload content or view the content or activity of  
21 other users;

22 (b) ten percent or more of the daily active users who are younger than  
23 sixteen years of age spend on average two hours or more per day on the  
24 online forum, website, or application on the days when using the online  
25 forum, website, or application during the previous twelve months or, if  
26 the online forum, website, or application did not exist during the  
27 previous twelve months, during the previous month;

28 (c) employs algorithms that analyze user data or information on users  
29 to select content for users; and

30 (d) has any of the following addictive features:

31 (i) infinite scrolling, including, but not limited to:

32 (A) continuously loading content, or content that loads as the user  
33 scrolls down the page without the need to open a separate page; or

34 (B) seamless content, or the use of pages with no visible or apparent  
35 end or page breaks;

36 (ii) push notifications or alerts sent by the online forum, website,  
37 or application to inform a user about specific activities or events  
38 related to the user's account;

39 (iii) displays personal interactive metrics that indicate the number  
40 of times other users have clicked a button to indicate their reaction to  
41 content or have shared or reposted the content;

42 (iv) auto-play video or video that begins to play without the user  
43 first clicking on the video or on a play button for that video; or

44 (v) live-streaming or a function that allows a user or advertiser to  
45 broadcast live video content in real-time.

46 The term "social media platform" shall not include an online service,  
47 website, or application where the exclusive function is email or direct  
48 messaging consisting of text, photographs, pictures, images, or videos  
49 shared only between the sender and the recipients, without displaying or  
50 posting publicly or to other users not specifically identified as the  
51 recipients by the sender.

52 § 1551. Minors as account holders of platforms that provide an addic-  
53 tive feature. 1. (a)(1) A covered platform shall not provide an addic-  
54 tive feature to a user who is under sixteen years of age.

55 (2) This paragraph does not prohibit a covered platform from permit-  
56 ting a user who is under sixteen years of age to create or maintain an

1 account on the covered platform if that user is not provided with any  
2 addictive features.

3 (b) A covered platform shall implement reasonable measures to ensure  
4 that users under sixteen years of age are not provided any addictive  
5 features on the covered platform.

6 (c) Except as provided in paragraph (a) of this subdivision, a covered  
7 platform shall:

8 (1) delete the account of users under sixteen years of age and any  
9 personal information associated with the user of the account;

10 (2) allow an account holder younger than sixteen years of age to easi-  
11 ly request to terminate the account. Such account shall be terminated  
12 within five business days of such request;

13 (3) allow a confirmed parent or guardian of an account holder younger  
14 than sixteen years of age to request that the minor's account be termi-  
15 nated. Such account shall be terminated within ten business days of such  
16 request; and

17 (4) permanently delete all personal information held by the social  
18 media platform relating to the terminated account, unless there are  
19 legal requirements to maintain such information.

20 2. Subdivision one of this section does not apply to a covered plat-  
21 form that permits a user under sixteen years of age to create or main-  
22 tain an account on the platform pursuant to subparagraph two of para-  
23 graph (a) of subdivision one of this section.

24 3. The attorney general shall maintain a website to receive  
25 complaints, information or referrals from members of the public concern-  
26 ing a social media platform's alleged compliance or non-compliance with  
27 the provisions of this article.

28 § 1552. Age verification. Before providing an addictive feature to a  
29 user, a covered platform shall verify the age of a user pursuant to the  
30 age assurance regulations established under article forty-five of this  
31 chapter.

32 § 1553. Enforcement. 1. (a) No earlier than one hundred eighty days  
33 after the effective date of this article, whenever it appears to the  
34 attorney general, either upon complaint or otherwise, that any person or  
35 entity, within or outside the state, has knowingly or recklessly engaged  
36 in or is about to engage in any of the acts or practices stated to be  
37 unlawful in this article, the attorney general may bring an action or  
38 special proceeding in the name and on behalf of the people of the state  
39 of New York to enjoin any violation of this article, to obtain restitu-  
40 tion of any moneys or property obtained directly or indirectly by any  
41 such violation, to obtain disgorgement of any profits or gains obtained  
42 directly or indirectly by any such violation, including but not limited  
43 to the destruction of unlawfully obtained data, to obtain damages caused  
44 directly or indirectly by any such violation, to obtain civil penalties  
45 of up to fifty thousand dollars per violation, and to obtain any such  
46 other and further relief as the court may deem proper, including prelim-  
47 inary relief. Where the person or entity's actions demonstrate a pattern  
48 of knowing and reckless conduct in violation of this article, punitive  
49 damages may be assessed against the person or entity.

50 (b) No earlier than one hundred eighty days after the effective date  
51 of this article, a civil action may be brought by a minor account holder  
52 against a person or entity, within or outside the state, which has know-  
53 ingly or recklessly engaged in any of the acts or practices stated to be  
54 unlawful in this article to obtain restitution of any moneys or property  
55 obtained directly or indirectly by any such violation, to obtain  
56 disgorgement of any profits or gains obtained directly or indirectly by

1 any such violation, including but not limited to the destruction of  
2 unlawfully obtained data, to obtain damages caused directly or indirect-  
3 ly by any such violation, to obtain civil penalties of up to ten thou-  
4 sand dollars per violation, and to obtain any such other and further  
5 relief as the court may deem proper, including preliminary relief. Where  
6 the person or entity's actions demonstrate a pattern of knowing and  
7 reckless conduct in violation of this article, punitive damages may be  
8 assessed against the person or entity. Any action brought under this  
9 paragraph shall be brought on behalf of a minor account holder.

10 2. A civil action for a claim under this subdivision shall be brought  
11 within one year from the date the complainant knew, or reasonably should  
12 have known, of the alleged violation. This section does not preclude any  
13 other available remedy at law or equity.

14 3. The attorney general shall have the authority to investigate  
15 violations of this article. The attorney general shall have authority to  
16 issue, through the attorney general, subpoenas for the attendance of  
17 witnesses before the commission. A subpoena issued under this section  
18 shall be regulated by the civil practice law and rules. All information  
19 collected and held by the attorney general pursuant to an investigation  
20 under this article shall be deemed confidential and shall not be subject  
21 to public disclosure under the freedom of information law or any other  
22 law which requires public disclosure of records maintained by a govern-  
23 mental agency.

24 4. The attorney general shall promulgate such rules and regulations as  
25 are necessary to effectuate and enforce the provisions of this article.

26 § 1554. E-Safety advisory commission. 1. A commission to be known as  
27 the E-Safety advisory commission is hereby created to investigate, eval-  
28 uate, and make recommendations to the attorney general on additional  
29 addictive features to be covered under this article.

30 2. (a) The commission shall consist of five members, to be appointed  
31 as follows: one member to be appointed by the governor, one member to be  
32 appointed by the temporary president of the senate, one member to be  
33 appointed by the minority leader of the senate, one member to be  
34 appointed by the speaker of the assembly, and one member to be appointed  
35 by the minority leader of the assembly.

36 (b) The members of the commission shall receive no compensation for  
37 their services, but shall be allowed their actual and necessary expenses  
38 incurred in the performance of their duties under this article. The  
39 commission may employ and at pleasure remove such personnel as it may  
40 deem necessary for the performance of its functions and fix their  
41 compensation within the amounts made available by appropriation there-  
42 for.

43 3. The commission shall investigate additional addictive features not  
44 covered under this article and recommend to the attorney general that  
45 such addictive features are covered under this article.

46 4. (a) For the accomplishment of its purposes, the commission may meet  
47 and hold public and/or private hearings within or without the state, and  
48 shall have all the powers of a legislative committee pursuant to the  
49 legislative law. The commission is authorized and empowered to undertake  
50 any studies, inquiries, surveys or analyses it may deem relevant through  
51 its own personnel or in cooperation with or by agreement with any other  
52 public or private agency.

53 (b) To the maximum extent feasible, the commission may request and  
54 shall be entitled to receive and shall utilize and be provided with such  
55 facilities, resources and data from any court in the state and from any  
56 subdivision, department, board, bureau, commission, office, agency, or

1 other instrumentality of the state or of any political subdivision ther-  
2 eof as it deems necessary or desirable for the proper execution of its  
3 powers and duties and to effectuate the purposes set forth in this  
4 section.

5 (c) The commission is hereby authorized and empowered to enter into  
6 any agreements and to do and perform any acts that may be necessary,  
7 desirable or proper to carry out the purposes and objectives of this  
8 section.

9 (d) The commission is required to hold at least two meetings per year.

10 5. The commission shall make recommendations and a report of its find-  
11 ings. The commission shall submit such recommendations and report to the  
12 attorney general, the governor, the temporary president of the senate,  
13 the minority leader of the senate, the speaker of the assembly, and the  
14 minority leader of the assembly, and make public online on the gover-  
15 nor's website no later than December first of each year.

16 § 2. This act shall take effect immediately.